

26STUD04115 26STUD04115

County: los-angeles

Division: Civil Law and Motion

Department: 534

Hearing date: 2026-08-13

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C534%2C08%2F13%2F2026

Source SHA-256: dbd01512a89b90f5b48d478b85c1b7d7d5d377513154a86c047a04275f44be25

Case Number: 26STUD04115 Hearing Date: August 13, 2026 Dept: 534

Background

On September 9, 2024, Jesus Rodriguez filed

Superior Court of Los Angeles County case 24STCV23097 against Guadalupe Diaz arising out of disputed ownership of real property located at 1451 E. Vernon Avenue, Los Angeles, CA 90011.

The First Amended Complaint, filed March 12, 2025, asserts causes of action for: (1) quiet title; (2) cancellation of instrument; (3) accounting; (4) unfair business practices; (5) injunctive relief; and (6) declaratory relief and added Diaz in her capacity as Trustee of the Diaz Family Revocable Living Trust. The FAC alleges Defendant sold and transferred the property to Plaintiff and a third-party on February 2, 2007. Plaintiff allegedly obtained sole ownership of the property on June 20, 2008 and Defendant forged a deed dated March 24, 2023 returning the property to Defendant.

On April 24, 2026, Diaz filed the First

Amended Cross-Complaint against Jesus Rodriguez, Rene Gonzalez, and Julia Molina asserting causes of action for: (1) quiet title; (2) slander of title; (3) fraud; (4) removal of lien; (5) breach of contract; (6) tortious interference with contractual relationship; (7) violation of covenant of good faith and fair dealing; (8) intentional infliction of emotional distress; and (9) negligent infliction of emotional distress. The FACC alleges the alleged transfer to Jesus Rodriguez was procured by fraud, seeks damages for failure to pay rent from Rene Gonzalez and Julia Molina, and alleges Rodriguez improperly entered into a different rental agreement with Gonzalez and Molina.

On April 22, 2026, Maria Guadalupe Diaz sued

Rene Gonzalez for unlawful detainer of real property located at 1451 E. Vernon

Ave., Unit #3, Los Angeles, CA 90011. Defendant Gonzalez contends Diaz is not the owner of the property and lacks standing.

On June 4, 2026, Plaintiff Jesus Rodriguez filed a Notice of Related Case involving 24STCV23097 and 26STUD04115 indicating the cases were related based upon every ground enumerated in California Rules of Court, rule 3.300.

On June 30, 2026, retired Judge Rolf M. Treu issued an order finding 24STCV23097 and 26STUD04115, were not related within the meaning of California Rules of Court, rule 3.300(a).

Motion

On July 24, 2026, Rene Gonzalez filed the instant motion to relate the two cases.

The motion is unopposed. (Code Civ. Proc. § 1005.)

Motion
to Relate Cases

Standard

Pursuant to Superior Court of Los Angeles County Local Rules, rule 3.3(f)(3), "[i]n the event that the judge designated under California Rules of Court, rule 3.300(h)(1)(A)(B)(C) to make the decision, does not order related any of the cases set forth in the Notice of Related Cases, any party may file a motion to have the cases related. Department 1 [renumbered as of May 4, 2026, Department 534] shall hear the motion, if the cases are all pending in the Central District or are pending in two or more different districts."

The
Court Shall Relate the Cases at Issue

On June 30, 2026, Judge Rolf M. Treu issued an order finding 24STCV23097 and 26STUD04115, were not related

within the meaning of California Rules of Court, rule 3.300(a). The motion is therefore properly before this Court. (SCLAC Local Rules, rule 3.3(f)(3); Cal. R. Ct., rule 3.300(h)(1)(D).)

Cases

are related when they (1) involve the same parties and are based on the same or similar claims, (2) arise from the same or substantially identical transactions, incidents, or events requiring the determination of the same or substantially identical questions of law or fact, (3) involve claims against, title to, possession of, or damages to the same property, or (4) are likely for other reasons to require substantial duplication of judicial resources if heard by different judges. (Cal. R. Ct., rule 3.300(a).) “When for tactical reasons one side files an action related to an existing case, both sides must file this routine notice. The notice goes to the trial judge in the low-numbered case, who then can decide how to handle the parallel litigation. The notice allows the trial court to promote efficiency, to avoid duplicative effort, to combat judge-shopping, and to minimize the prospect of conflicting results. The trial court system relies on this mechanism to detect and to cure the problem of parallel litigation within its jurisdiction.” (Harris v. Rojas (2021) 66 Cal.App.5th 817, 820.)

The

cases do not involve the same parties as only Plaintiff and Defendant Gonzalez are common to both cases. (Cal. R. Ct., rule 3.300(a)(1).) The cases also are not based on the same or similar claims. (Ibid.) The cases also do not arise from the same or substantially identical transactions, incidents, or events requiring the determination of the same or substantially identical questions of law or fact. (Cal. R. Ct., rule 3.300(a)(2).) Unlawful detainer proceedings only concern straightforward issues regarding the right to possession of disputed premises and the award of damages for any unlawful detention; therefore, issues regarding the property’s title cannot be adjudicated therein because unlawful detainer proceedings are designed to be summary proceedings. (Martin-Bragg v. Moore (2013) 219 Cal.App.4th 367, 385.)

However,

the cases involve title to, and possession of, the same property, (Cal. R. Ct., rule 3.300(a)(3)), and will require a substantial duplication of judicial resources if heard by different judges. (Cal. R. Ct., rule 3.300(a)(4).) The property at issue in the unlawful detainer action is subject to competing quiet title claims in the civil case and the unlawful detainer defendant has

challenged plaintiff's ownership. (Martin-Bragg v. Moore (2013) 219 Cal.App.4th 367, 385 ("a successful claim of title . . . would defeat the [plaintiff's] right to possession.")) Additionally, the cases involve competing lease agreements for the property. The Court finds the cases are related within the meaning of California Rules of Court, rule 3.300.

Where,

as here, "an unlawful detainer proceeding and an . . . action concerning title to the property are simultaneously pending, the trial court in which the . . . action is pending may stay the unlawful detainer action until the issue of title is resolved in the unlimited action, or it may consolidate the actions."

(Ibid.) In the Superior Court of Los

Angeles County, a party cannot request consolidation unless the cases are pending in the same department, (SCLAC Local Rules, rule 3.3(g)(1), which is achieved via an order relating the cases. A single judicial officer should determine which of these remedies, if any, are appropriate under the circumstances and resolve all disputes between the parties related to the property.

The

motion is GRANTED.

Conclusion

Defendant

Rene Gonzalez's Motion to Relate Cases is GRANTED.

The

Court relates 24STCV23097 and 26STUD04115 and orders 26STUD04115 reassigned to Department 731 of the Stanley Mosk Courthouse for all purposes.

All hearings

currently set in 26STUD04115 are hereby advanced and vacated.

Counsel

for Moving Party is ordered to give notice.